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November 6, 2019

VIA EFILING

Rosemary Chiavetta, Secretary
Pennsylvania Public Utility Commission
Commonwealth Keystone Building
400 North Street, 2nd Floor
Harrisburg, PA 17120

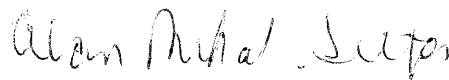
Re: Application of Southeastern Pennsylvania Transportation Authority for approval to construct a crossing at the intersection of Oak and Stoddard Streets in the Borough of Conshohocken, at grade, over the tracks of Southeastern Pennsylvania Transportation Authority's Norristown Regional Rail Line near milepost 13.88 in Conshohocken, Montgomery County Pennsylvania;
Docket No. A-2018-3005838

Dear Secretary Chiavetta:

On behalf of Southeastern Pennsylvania Transportation Authority ("SEPTA"), I have enclosed for electronic filing SEPTA's Petition for Leave to Withdraw Application in the above-captioned proceeding.

Copies are being served as indicated in the attached Certificate of Service.

Very truly yours,



Alan M. Seltzer

AMS/tlg
cc: Certificate of Service

**BEFORE THE
PENNSYLVANIA PUBLIC UTILITY COMMISSION**

Application of Southeastern Pennsylvania :
Transportation Authority for approval to :
construct a crossing at the intersection of : Docket No. A-2018-3005838
Oak and Stoddard Streets in the Borough of :
Conshohocken, at grade, over the tracks of :
Southeastern Pennsylvania Transportation :
Authority's Norristown Regional Rail Line :
Near Milepost 13.88 in Conshohocken, :
Montgomery County Pennsylvania. :

**SOUTHEASTERN PENNSYLVANIA TRANSPORTATION AUTHORITY'S
PETITION FOR LEAVE TO WITHDRAW APPLICATION**

AND NOW, comes Southeastern Pennsylvania Transportation Authority ("SEPTA"), by and through its counsel, Alan M. Seltzer, hereby files this Petition for Leave to Withdraw Application filed by SEPTA on November 5, 2018 in the above captioned matter, pursuant to 52 Pa. Code § 1.82, based upon the following:

1. The name and address of your Petitioner is:

Southeastern Pennsylvania Transportation Authority
1234 Market Street
Philadelphia, Pennsylvania 19107

2. The name and address of Counsel for the moving party is:

Alan M. Seltzer (PA I.D. No. 27890)
BUCHANAN INGERSOLL & ROONEY PC
409 North Second Street, Suite 500
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Phone: 717 237 4862
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E-mail: alan.seltzer@bipc.com

3. On November 5, 2018, SEPTA filed an Application with the Pennsylvania Public Utility Commission ("Commission") seeking approval of the construction of a crossing at the intersection of Oak and Stoddard Streets in Conshohocken, Pennsylvania, at grade, over the

tracks of SEPTA's Norristown Regional Rail Line near milepost 13.88 in Conshohocken, Montgomery County, Pennsylvania ("Application").

4. The Application was docketed at Number A-2018-3005838.

5. No formal protests, objections or interventions were filed in response to the Application.

6. A field investigation and conference was held in connection with the Application near the site of the proposed Oak Street crossing on March 8, 2019.

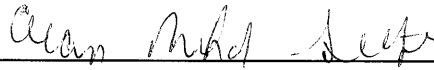
7. After completion of the field investigation and conference, it became clear that the site still remains a private crossing and whether and when it will become a public crossing subject to this Commission's jurisdiction is uncertain.

8. Given this uncertainty and SEPTA's desire to avoid the Commission's and other interested parties' time and resources in addressing a matter that is not yet ripe for Commission decision, SEPTA respectfully requests that the Application be deemed withdrawn and the matter closed.

WHEREFORE, Southeastern Pennsylvania Transportation Authority respectfully requests that the Application filed November 5, 2018, be deemed withdrawn and this matter closed consistent with this Petition.

Date: October 23, 2019

Respectfully submitted,

A handwritten signature in cursive script, appearing to read "Alan M. Seltzer", is written over a horizontal line.

Alan M. Seltzer (PA I.D. No. 27890)
BUCHANAN INGERSOLL & ROONEY PC
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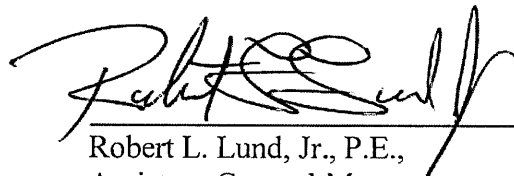
*Attorneys for Southeastern Pennsylvania
Transportation Authority*

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PENNSYLVANIA PUBLIC UTILITY COMMISSION**

Application of Southeastern Pennsylvania :
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Near Milepost 13.88 in Conshohocken, :
Montgomery County Pennsylvania. :

VERIFICATION

I, Robert L. Lund, Jr., P.E., certify that I am the Assistant General Manager, Engineering, Maintenance & Construction, for Southeastern Pennsylvania Transportation Authority, and that in this capacity I am authorized to, and do make this Verification on their behalf, that the facts set forth in the foregoing document are true and correct to the best of my knowledge, information and belief, and that Southeastern Pennsylvania Transportation Authority, expects to be able to prove the same at any hearing that may be held in this matter. I understand that false statements made therein are made subject to the penalties of 18 Pa. C.S. § 4904, relating to unsworn falsifications to authorities.



Robert L. Lund, Jr., P.E.,
Assistant General Manager,
Engineering, Maintenance & Construction,
Southeastern Pennsylvania Transportation
Authority

DATED: October 23, 2019

**BEFORE THE
PENNSYLVANIA PUBLIC UTILITY COMMISSION**

Application of Southeastern Pennsylvania :
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Near Milepost 13.88 in Conshohocken, :
Montgomery County Pennsylvania. :

CERTIFICATE OF SERVICE

I hereby certify that this day I served a copy of the foregoing document upon the persons
listed below in the manner indicated in accordance with the requirements of 52 Pa. Code § 1.54.

Via First Class Mail:

Borough of Conshohocken
Ms. Stephanie Cecco, Interim Borough
Manager
400 Fayette Street, Suite 200
Conshohocken, Pa 19428

PECO Energy
Mr. Louis Robinson, Senior Engineer
830 S. Schuylkill Avenue
Philadelphia, Pa 19146

PECO Energy
1050 W. Swedesford Road
Berwyn, Pa 19312
Mr. Bill Hensil – Program Manager

Comcast Cable Communications
Ms. Susan Van Allen, Esquire
1701 John F. Kennedy Boulevard
One Comcast Center
Philadelphia, Pa 19103

Pennsylvania Department of Transportation
Mr. Rich Avicelli
7000 Geerdes Blvd.
King of Prussia, Pa 19406

Pennsylvania Department of Transportation
ROW & Utility Division
Bureau of Design – Project Delivery
PennDOT
P.O. Box 3362
Harrisburg, PA 17105-3362

Aqua PA
Mr. Robert Todd
Estimating Supervisor
762 W. Lancaster Ave.
Bryn Mawr, Pa 19010

Trish Jacobs
Verizon-Right of Way
Eng IV Spec-Network Eng & Ops
40 S. Mercer St.
New Castle, PA 16101

Verizon
Mr. Brian M. Magee
900 Race Street, 6th Floor
Philadelphia, Pa 19107

Comcast
Jack Clayton
4400 Wayne Avenue
Philadelphia, Pa 19140

Pennsylvania Department of Transportation
Ms. Gina D'Alfonso, Esquire
P.O. Box 8212
Harrisburg, Pa 17105-3128

Montgomery County
Lauren Lambvugo
Chief Operating Officer/Chief Clerk
One Montgomery Plaza, Suite 800
Norristown, PA 19404

Mike Weaver, Project Manager
Level 3 Communications
1025 El Dorado Boulevard
Broomfield, CO 80021

Borough of Conshohocken
Mr. Raymond Sokolowski
Director of Public Services
610 E. Elm Street
Conshohocken, Pa 19428

Borough of Conshohocken Authority
601 E. Elm Street
Conshohocken, Pa 19428-1914

Zayo Group
Mr. Chris Ricciuti
170 Robbins Road
Downingtown, Pa 19335

RCN Telecom Services of PA
Kevin Cochran
Northampton Office
5508 Nor Bath Blvd.
Northampton, Pa 18067

AT&T Local Services
C/O Trec Group, Inc.
900 Old Marple Road
Springfield, Pa 19064
Mr. Steve Altobelli – Project Manager

Office of Chief Counsel
PennDOT
P.O. Box 8212
Harrisburg, PA 17105-8212

PennDOT District 6-0
Mary Ann Lang
7000 Geerdes Boulevard
King of Prussia, PA 19604

Montgomery County Planning Commission
Jody Holton
Executive Director
One Montgomery Plaza, Suite 201
425 Swede St.
Norristown, Pa 19401

Montgomery County
Valerie Arkoosh, M.D.
Chair of the Board of Commissioners
One Montgomery Plaza, Suite 800
425 Swede St.
Norristown, Pa 19401

Grande at Riverview Condominium Assoc.
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Conshohocken, PA 19428

Keystone River Crossing Elm, LLP
Keystone Property Group
125 E. Elm Street
Suite 400
Conshohocken, PA 19428

Mrs. Sarah R. Neve
2015 Riverfront Property Trust
2173 Joshua Road
LaFayette Hill, PA 19444

Mrs. Sarah R. Neve
c/o Michael Sencindiver, Esquire
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Via Email (Attendees at Field Conference):

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Date: November 6, 2019



Alan M. Seltzer